

UGSSP Test : Week 1 Polity

PERFORMANCE

SOLUTIONS

Choose Section : Self Study Plan Subject

All(50)

Un-Attempt(7)

Attempt(42)

Q.1

[Why India is described as a ‘Union of States’ rather than a ‘Federation of States’:-](#)
[1. The Indian federation is the result of an agreement among the states.](#)
[2. States have no right to secede from the federation.](#)
[Select the correct answer using the code given below.](#)
[Which of the statements given above is/are correct?](#)

- 1

1 only
- 2

2 only
- 3

Both 1 and 2
- 4

None

Solution

Article 1 describes India, that is, Bharat as a ‘Union of States’ rather than a ‘Federation of States’. This provision deals with two things: one, name of the country, and two, type of polity.

- There was no unanimity in the Constituent Assembly with regard to the name of the country. Some members suggested the traditional name (Bharat) while other advocated the modern name (India). Hence, the Constituent Assembly had to adopt a mix of both (‘India, that is, Bharat’). Secondly, the country is described as ‘Union’ although its Constitution is federal in structure.
- According to Dr. B.R Ambedkar, the phrase ‘Union of States’ has been preferred to ‘Federation of States’ for two reasons: The Indian Federation is not the result of an agreement among the states like the American Federation. Hence, statement 1 is not correct.

The states have no right to secede from the federation. Hence, statement 2 is correct.

- The federation is a Union because it is indestructible. The country is an integral whole and divided into different states only for the convenience of administration.

Your Answer: 2CORRECT || Marks: (+2,-0.66)|| On Screen: 00:36

Q.2

[The States Reorganisation Commission, set up in 1953 to consider the demand for linguistic states, was headed by.](#)

- 1

M C Mahajan
- 2

K M Pannikkar
- 3

H N Kunzru
- 4

Fazl Ali

Solution

The Government of India in December 1953, appointed a three-member States Reorganisation Commission under the chairmanship of Fazl Ali to re-examine the whole question. Its other two members were K M Panikkar and H N Kunzru. Its report submitted in September 1955, broadly accepted language as the basis of reorganization of states, but rejected the

CORRECT || Marks: (+2,-0.66)|| On Screen: 00:24

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-

- 2 to an inferior court or body exercising judicial or quasi-judicial functions to transfer the record of proceedings in a case for its review.
- 3 to an authority to produce an illegally detained person before the court for trial.
- 4 To prevent an inferior court or tribunal from exceeding its jurisdiction or acting contrary to the rules of natural justice.

Solution

The literal meaning of ‘Prohibition’ is ‘To forbid.’ A court which is higher in position issues Prohibition writ against a court which is lower in position to prevent the latter from exceeding its jurisdiction or usurping a jurisdiction that it does not possess. It directs inactivity.
Facts about Prohibition in India:
Writ of Prohibition can only be issued against judicial and quasi-judicial authorities.It can’t be issued against administrative authorities, legislative bodies, and private individuals or bodies.

Your Answer: 2 INCORRECT || Marks: (+2,-0.66)|| On Screen: 01:49

Q.6
[Which among the following acts provided for a High Commissioner who resided in London, representing India in Great Britain:-](#)

- 1 Government of India Act 1858
- 2 Government of India Act 1909
- 3 Government of India Act 1919
- 4 Government of India Act 1935

Solution

The Government of India Act, 1919 provided for a high commissioner, who resided in London and represented India in Great Britain.

Your Answer: Not Answered UNATTEMPT || Marks: (+2,-0.66)|| On Screen: 00:34

Q.7
[Who among the following can suspend the fundamental rights:-](#)

- 1 Parliament
- 2 President
- 3 Prime minister
- 4 Supreme court

Solution

During national emergency, all the basic freedoms guaranteed by article 19 automatically get suspended. During emergency, President can suspend all other fundamental rights also except Article 20 (protection in respect of conviction for offences) and Article 21 (Protection of life and personal liberty). Such suspension needs parliamentary approval.

CORRECT || Marks: (+2,-0.66)|| On Screen: 00:21

The Preamble is used by the Courts in constitutional interpretation because:-

2. It is the source of all constitutional powers and limitations on authority of the government.

1 1 Only

② 2 Only

③ None

④ Both

It contains the enacting clause which brings the Constitution into force. It declares the basic type of government and polity which is sought to be established in the country. It declares the great rights and freedom which the people of India intended to secure to its entire citizen.

INCORRECT || Marks: (+2,-0.66)|| On Screen: 00:34

Which of the following does not find mention in the Preamble of India's Constitution:-

Select the correct answer code:

1 1 and 3

② 2, 3 and 4

③ 1,2 and 3

4 4 Only

FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation; IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

INCORRECT || Marks: (+2,-0.66)|| On Screen: 01:18

Consider the following statements regarding the concept of secularism.

2.The Western concept of secularism connotes a complete separation between the religion and the state.

④ Neither 1 nor 2

The Western concept of secularism connotes a complete separation between the religion (the church) and the state (the politics). This negative concept of secularism is inapplicable in the Indian situation where the society is multi-religious. Hence, the Indian Constitution embodies the positive concept of secularism, i.e., giving equal respect to all religions or protecting all religions equally.

INCORRECT || Marks: (+2,-0.66)|| On Screen: 01:08

Who was the chairman of the drafting committee of the Constituent Assembly:-

4 Dr. B.R. Ambedkar

The most important committee of the Constituent Assembly was the Drafting Committee set up on August 29, 1947. It was entrusted with the task of preparation of the draft of the constitution. Dr. B. R. Ambedkar was the Chairman of the Committee.

CORRECT || Marks: (+2,-0.66)|| On Screen: 00:12

Consider the following statements regarding formation of states in India.

Which of the above statements is/are incorrect?

1 1 only

- 3 Both 1 and 2

Article 3 authorizes the Parliament to:

However, Article 3 lays down two conditions in this regard: one, a bill contemplating the above changes can be introduced in the Parliament only with the prior recommendation of the President; and two, before recommending the bill, the President has to refer the same to the state legislature concerned for expressing its views within a specified period.

INCORRECT || Marks: (+2,-0.66)|| On Screen: 01:49

Which Act enabled the Governor General to associate representatives of the Indian People with the work of legislation by nominating them to his expanded council?

- ② Indian Councils Act, 1861

Indian Councils Act, 1861, made a beginning of representative institutions by associating Indians with the law-making process. It thus provided that the viceroy should nominate some Indians as non-official members of his expanded council. In 1862, Lord Canning, the then viceroy, nominated three Indians to his legislative council—the Raja of Benaras, the Maharaja of Patiala and Sir Dinkar Rao.

UNATTEMPT || Marks: (+2,-0.66)|| On Screen: 00:50

Consider the following statements regarding Fundamental Rights.
1.Fundamental Rights protect citizens against the arbitrary and absolute exercise of power by the State.
2.The Constitution guarantees the rights of the individual against the State but not against other individuals.
Which of the above statements is/are correct?

- ① 1 only

Solution

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:01

UNATTEMPT || Marks: (+2,-0.66)|| On Screen: 00:48

UNATTEMPT || Marks: (+2,-0.66)|| On Screen: 01:20

1

- #### 4 Mandamus

Solution

Mandamus means 'we command'. It is a command issued by the court to a public official asking him to perform the official duties that he has failed or refused to perform. It can also be issued against any public body, a corporation, an inferior court, a tribunal or government for the same purpose.

The writ of mandamus cannot be issued a against a private individual or body; b to enforce departmental instruction that does not possess statutory force; c when the duty is discretionary and not mandatory; d to enforce a contractual obligation; (e) against the President of India or the state Governors; and (f) against the Chief Justice of a High Court acting in judicial capacity. Hence, option d is the correct answer.

CORRECT || Marks: (+2,-0.66)|| On Screen: 00:29

Q.18

1. Distributive justice is the combination of social justice and economic justice.
 2. The ideal of justice—social, economic and political has been taken from the Russian Revolution.
 3. Justice is secured through various provisions of Fundamental Rights and Directive Principles.
- How many of the statements given above are correct?

- ④ None

Solution

- **Statement 1 is correct:** Distributive justice is concerned with the measurements that should be used to allocate the resources of the society.

- It also decides fair distribution of the burdens and benefits of social cooperation among persons with various needs and claims.
- The term 'justice' in the Preamble embraces three distinct forms—social, economic and political, secured through various provisions of Fundamental Rights and Directive Principles. A combination of social justice and economic justice denotes what is known as 'distributive justice'.

● **Statement 2 is correct:** The concept of Justice - social, economic, and political has been taken from the Russian Revolution. The Russian Revolution was a period of political and social revolution across the territory of the Russian Empire, commencing with the abolition of the monarchy in 1917. It was led by Vladimir Lenin.

- **Statement 3 is correct:** Justice means that each individual be treated fairly, and given the same opportunities. Justice refers to the fact that all Indian citizens should receive social, economic, and political justice.
- Since the dawn of human civilization, the concept of justice has been central. These are secured through various provisions of Fundamental Rights and Directive Principles. The Fundamental Rights ensure political justice and DPSP ensures economic and social justice.

Your Answer: 3

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:34

Q.19

With reference to the preventive detention in India, consider the following statements:
1. It is mandatory to inform the detainee of the grounds of arrest before he/she is taken into the custody.
2. It is compulsory to produce the detained person before a magistrate within 24 hours.
Which of the statements given above is/are correct?

11 only

22 only

3Both 1 and 2

4Neither 1 nor 2

Solution

Article 22 grants protection to persons who are arrested or detained. Punitive detention is a punishment for illegal acts done. Preventive detention is imprisonment of a person beforehand to prevent the possible commitment of a crime. Preventive detention thus is action taken on grounds of suspicion that some wrong actions may be done by the person concerned.
• The first part of Article 22 confers the following rights on a person who is arrested or detained under an ordinary law: 1. Right to be informed of the grounds of arrest. 2. Right to consult and be defended by a legal practitioner. 3. Right to be produced before a magistrate within 24 hours, excluding the journey time. 4. Right to be released after 24 hours unless the magistrate authorises further detention.
• Article 22 (5) says when any person is detained in pursuance of an order made under any law providing for preventive detention, the authority making the order shall, as soon as may be, communicate to such person the grounds on which the order has been made and shall afford him the earliest opportunity of making a representation against the order.

Your Answer: 4

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:20

Q.20

Which of the following Articles cannot be suspended during National Emergency:-

1Articles 14 and 15

2Article s19 and 20

3Articles 21 and 22

4Articles 20 and 21

Solution

Article 20 {Protection in respect of conviction for offenses}: No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, not be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence.

No person shall be prosecuted and punished for the same offence more than once. No person accused of any offence shall be compelled to be a witness against himself. Article 21 {Protection of life and personal liberty}: No person shall be deprived of his life or personal liberty except according to procedure established by law.

Your Answer: 1

INCORRECT || Marks: (+2,-0.66)|| On Screen: 00:39

Q.21

Consider the following statements about the Regulating Act of 1773:

1. The act established the Governor of Bengal as the Governor-General of Bengal.
2. Annual elections of 24 directors were replaced by the election of six directors a year
3. The act granted the Governor-General veto power over the decisions of his council.
4. The act raised the qualification for voting in company elections from £500 to £1,000.

How many of the above statements are correct?

- ☐ 1 Only one
- ☐ 2 Only two
- ☒ 3 Only three
- ☐ 4 All four

Solution

- **Statement 1 is correct.** The Act elevated Governor of Bengal, Warren Hastings to Governor-General of Bengal and subsumed the presidencies of Madras and Bombay under Bengal's control.
 - **Statement 2 is correct.** Annual elections of 24 directors were replaced by the election of six directors a year, each for a four-year term, and the qualification for a vote was raised from £500 to £1,000. This change made it more difficult for private groups to control policy and places by manipulating votes.
 - **Statement 3 is incorrect.** The act rendered the Governor-General without any veto power.
 - **Statement 4 is correct.** The act raised the qualification for a vote from £500 to £1,000.
- More information about 1773 Act:**
- **REGULATION:** The British government to control and regulate affairs of the East India Company.
 - **RECOGNISATION:** Recognize the political and administrative functions (A&D) of the company.
 - **RENAMING:** Governor of Bengal to Governor General of Bengal.
 - **RESTRUCTURING:**
 - **Executive council:** to assist the governor.
 - **Status of Presidency:** Bombay and Madras presidency subordinate to the Governor General of Bengal.
 - **Institution:** Establishment of the Supreme Court at Fort William

Your Answer: Not Answered

UNATTEMPT || Marks: (+2,-0.66)|| On Screen: 00:37

Q.22

Consider the following statements regarding the Charter Act of 1813:

Statement-I: The Charter Act of 1813 gave Christian missionaries permission to enter India and preach their religion.

Statement-II: The Charter Act of 1813 appointed a Bishop to lead the Church, supported by Indian tax money.

Which one of the following is correct in respect of the above statements?

- ☐ 1 Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I
- ☒ 2 Both Statement-I and Statement-II are correct and Statement-II is not the correct explanation for Statement-I
- ☐ 3 Statement-I is correct but Statement-II is incorrect
- ☐ 4 Statement-I is incorrect but Statement-II is correct

Solution

- **Statement-I is correct.** The Charter Act of 1813 did give Christian missionaries permission to enter India and preach their religion.
 - **Statement-II is also correct,** as the Act appointed a Bishop to lead the Church, supported by Indian tax money.
- Therefore, the correct answer is (b), Both Statement-I and Statement-II are correct, and Statement-II is the not correct explanation for Statement-I. They are factually correct statements**
- More information:**
- **Background:** Napoleonic wars and the miseries it caused prompted the traders to pressurize the government to end the monopoly in trade that EIC enjoyed

- **Features of the act**
 - o **COMPANY’S RULE:** extended for another 20 years.
 - o **LICENSING SYSTEM:** British merchants were allowed to trade in India under a strict licensing system under the Charter Act of 1813.
 - o **COMPANY MONOPLY:** Trade with China and the tea and opium trade.
 - o **FINANCIAL GRANT:** It provided for a financial grant towards the revival of Indian literature and the promotion of science.
 - o **EDUCATIONAL GRANT:** The company was asked to take up a greater role in the education of the Indians under them. It was to set aside Rs.1 Lakh for this purpose.
 - o **Abolished the trade monopoly of the company in India:** Except trade in tea and trade with China.
 - o **Western Education:** Allowed the Christian missionaries for the spread of western education.

Your Answer: 2

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:08

Q.23

Which of the following features was NOT part of the Government of India Act 1919?

-

- 1

Introduction of Dyarchy in the provincial government.
- 2

Creation of a public service commission in India.
- 3

Establishment of the office of the High Commissioner for India in London.
- 4

Half of the council members should have 15 years of experience in public service in India.

Solution

Option (d) is correct because Half of the council members should have 10 years of experience in public service in India.
Therefore, the correct answer is (d). Statement d is correct.

More information

- **Indian in Executive Council:** The act mandated that the three of the six members of the Viceroy’s executive council were to be Indian
- **Principle of separate electorates:** extended to Sikhs, Indian Christians, Anglo-Indians and Europeans
- **Limited franchise:** people on the basis of property, tax or education
- **High commissioner of India:** position created. Some powers of Secretary of State was transferred to the commissioner
- **Provincial budgets were separated:** for the first time from the central budget.
- **Central public service commission:** was established
- **Statutory commission:** to analyse the impact of this act after 10 years- Simon Commission

Your Answer: 4

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:13

Q.24

Consider the following statements about the Constituent Assembly of India:
Statement-I: The Indian Independence Act of 1947 established the Constituent Assembly.
Statement-II: The Constituent Assembly was responsible for drafting the Indian Constitution.
Which one of the following is correct in respect of the above statements?

-

- 1

Both Statement-I and Statement-II are correct, and Statement-II is the correct explanation for Statement-I.
- 2

Both Statement-I and Statement-II are correct, and Statement-II is not the correct explanation for Statement-I.
- 3

Statement-I is correct, but Statement-II is incorrect.
- 4

Statement-I is incorrect, but Statement-II is correct.

Solution

- Statement-I is incorrect. The Indian Independence Act of 1947 did not establish the Constituent Assembly. The Constituent Assembly was formed before India gained independence, according to the Cabinet Mission Plan.
 - Statement-II is correct. The Constituent Assembly of India was responsible for drafting the Indian Constitution.
- Therefore, the correct answer is (d) Statement-I is incorrect, but Statement-II is correct.

More information:

- **Constituent Assembly:** in November 1946 under Cabinet Mission Plan.
- **Seat allocation:** as per population proportion.
- **Voting:** by method of proportional representation by means of single transferable vote in case of provincial representation.
- **Nature of assembly:**
 - o **Partly nominated:** by heads of Princely states
 - o **Partly elected body:** In British Provinces
- **Method of election:** Indirectly elected
- **Mahatma Gandhi:** not part of C.A.
- **Distribution of seats:** The 93 seats allotted to the princely states were not filled as they decided to stay away from the Constituent Assembly.

Your Answer: 4

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:08

Q.25

A law passed by the Parliament contains a provision that infringes upon the fundamental rights of citizens. In this context, which doctrine allows the court to declare only the offending provision as unconstitutional while keeping the rest of the law intact?

- 1 Doctrine of Separation of Powers
- 2 Doctrine of Judicial Review
- 3 Doctrine of Severability
- 4 Doctrine of Stare Decisis

Solution

- **Statement (a)** The Doctrine of Separation of Powers refers to the distribution of powers among the three branches of government. It is incorrect
 - **Statement (b)** The Doctrine of Judicial Review allows the courts to review the constitutionality of laws. It is incorrect
 - **Statement (c)** Doctrine of Severability. This doctrine enables the court to separate the unconstitutional part of a law while preserving the valid portions. It is correct
 - **Statement (d)** The Doctrine of Stare Decisis relates to the principle of precedent. It is not directly related to severability. It is incorrect
- Therefore, the correct answer is (c).

Your Answer: 2

INCORRECT || Marks: (+2,-0.66)|| On Screen: 00:38

Q.26

The concept of 'equality before law' in the Indian Constitution means:

- 1 All laws must treat individuals equitably.
- 2 Every individual is equal before the law and has the same legal rights.
- 3 The government can discriminate between individuals based on their characteristics.

4

 The judiciary has the authority to create laws.

Solution

Solution:

The concept of “Equality before the Law” is enshrined in Article 14 of the Indian Constitution.

It means:

No person is above the law.

Every individual — whether citizen or non-citizen, rich or poor, high or low — is subject to the same law and has equal access to justice.

There shall be no discrimination in the application of law.

All persons are entitled to equal legal protection and same legal rights.

This is a negative concept (borrowed from British Common Law), meaning the absence of any special privilege in favour of any person.

More information:

- **Equality before law:**
 - o **Special privileges:** absent of any special privileges in favour of any person
 - o **Equal subjection:** of all persons to the ordinary law of land
 - o **No-about the law:** nobody is above the law

Your Answer: 2

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:00

Q.27

Consider the following pairs:
Preamble - Description
1. Sovereign - India is a member of the United Nations.
2. Socialist - Government control of strategic industries.
3. Secular - Promotion of atheism.
4. Democratic - Universal adult franchise.
How many of the above pairs are correctly matched?

-

- 1 Only one pair
- 2 Only two pairs
- 3 All three pairs
- 4 None of the pairs

Solution

- **Statement 1 Incorrect.** Sovereign means that India is not under the control or dominion of any foreign power.
- **Statement 2 Correct.** The Constitution advocates socialism by means of part of state ownership or control of key industries.
- **Statement 3 Incorrect.** Secular means the state has no religion, not promoting atheism.
- **Statement 4 Correct.** India follows a democratic system with universal adult franchise.

Your Answer: 2

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:43

Q.28

With reference to the Fundamental Right to Education in the Indian Constitution, consider the following statements:
1. The Right to Education is a fundamental right for children in the age group of 3 to 18 years.
2. Private schools are mandated to provide free and compulsory education under this right.
3. The State has the authority to regulate the fees charged by private unaided schools.
How many of the above statements are correct?

-

- 1 Only one

2 Only two

3 Only three

4 None

Solution

- **Statement 1** The Right to Education is a fundamental right for children in the age group of 6 to 14 years under Article 21A. So, **Statement 1 is incorrect.**
- **Statement 2** Private schools are mandated to admit a certain percentage of students from disadvantaged groups without charging any fee, but they are not required to provide free education to all. So, **Statement 2 is incorrect.**
- **Statement 3** The State does have the authority to regulate the fees charged by private unaided schools as per the Right to Education Act. The State has the authority to regulate the fees charged by private unaided schools by forming a District Fee Regulatory Committee. So, **Statement 3 is correct.**

More information:

- **About Art. 21 A:** It declares that the State shall provide free and compulsory education to all children of the age of six to fourteen years in such a manner as the State may determine.
- **Elementary education as fundamental right:** and not higher or professional education.
- **Added by:** 86th Constitutional Amendment Act of 2002.
- **86th CAA 2002**
- **‘Education for All’:** major milestone in the country’s aim to achieve ‘Education for All’.
- **Second revolution for citizen rights:** The government described this step as ‘the dawn of the second revolution in the chapter of citizens’ rights.
- **Earlier position:** Prior this amendment, the DPSP (Art. 45 in Part IV) contained a provision for free and compulsory education for children.
- **Limitation of being DPSP:** Being a directive principle, it was not enforceable by the courts.

Now, there is scope for judicial intervention in this regard.

- **Amendments:** changed the subject matter of Art. 45 in directive principles.
- **Present position:** It now reads– ‘The state shall endeavour to provide early childhood care and education for all children until they complete the age of six years.’

Right of Children to Free and Compulsory Education (RTE) Act, 2009:

- In pursuance of Art. 21A, the Parliament enacted the Right of Children to Free and Compulsory Education (RTE) Act, 2009.
- **Provisions:**
 - o **Education as fundamental right:** Every child has a right to be provided full time elementary education of satisfactory and equitable quality in a formal school which satisfies certain essential norms and standards.
 - o **Objective:** This legislation is anchored in the belief that the values of equality, social justice and democracy and the creation of a just and humane society can be achieved only through provision of inclusive elementary education to all.

Your Answer: 2

INCORRECT || Marks: (+2,-0.66)|| On Screen: 01:19

Q.29

The government decided to curtail the Freedom of Religion in the event of a public health emergency like Covid 19, leading to restrictions on religious gatherings. Which article empowers the government to do so?

1 Article 15

2 Article 26

3 Article 21

4 Article 25

Solution

In this scenario, the government is empowered to impose restrictions on the exercise of the Fundamental Right to Freedom of Religion by invoking Article 25(1), which allows for such restrictions in the interest of public order, morality, and health.

Your Answer: 3

INCORRECT || Marks: (+2,-0.66)|| On Screen: 01:12

Q.30

Consider the following statements regarding the Right to Equality in India:
Statement-I: Reservations in educational institutions are based on caste.
Statement-II: Reservations can also be provided for socially and educationally backward classes.
Which one of the following is correct in respect of the above statements?

- 1 Both Statement-I and Statement-II are correct, and Statement-II is the correct explanation for Statement-I.
- 2 Both Statement-I and Statement-II are correct, and Statement-II is not the correct explanation for Statement-I.
- 3 Statement-I is correct but Statement-II is incorrect.
- 4 Statement-I is incorrect but Statement-II is correct.

Solution

Statement (d) is correct. Reservations are not based on caste. They are provided for socially and educationally backward classes, and also based on economically weaker sections. Statement-II provides the correct explanation.

There are four exceptions to this general rule of non-discrimination:

- **Article 15(3):** The state is permitted to make any special provision for women and children.
o **For example:** reservation of seats for women in local bodies or provision of free education for children.
- **Article 15(4):** The state is permitted to make any special provision for the advancement of any socially and educationally backward classes of citizens or scs & sts.
o **For example:** reservation of seats or fee concessions in public educational institutions.
- **Article 15(5):** The state is empowered to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the SCs & STs regarding their admission to educational institutions except the minority educational institutions.
- **Article 15(6):** The state is empowered to make any special provision for advancement of any Economically Weaker Sections of society. (103rd CAA)

Your Answer: 2

INCORRECT || Marks: (+2,-0.66)|| On Screen: 01:57

Q.31

Consider the following statements regarding the Cultural and Educational Rights:
Statement-I: Minority communities have the right to establish and administer educational institutions of their choice.
Statement-II: These rights can be restricted by the state for ensuring the quality of education.
Which one of the following is correct in respect of the above statements?

- 1 Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I.
- 2 Both Statement-I and Statement-II are correct and Statement-II is not the correct explanation for Statement-I.
- 3 Statement-I is correct but Statement-II is incorrect.
- 4 Statement-I is incorrect but Statement-II is correct.

Solution

Statement (b) is correct. Both Statement-I and Statement-II are correct. Minority communities do have the right to establish and administer educational institutions, and these rights can be restricted by the state for ensuring the quality of education.

- **About Art. 29:** it provides that any section of the citizens residing in any part of India having a distinct language, script or culture of its own, shall have the right to conserve the same.
- **No citizen shall be denied:** admission into any educational institution maintained by the State or receiving aid out of State funds on grounds only of religion, race, caste, or language.

Provisions:

- **Art. 29(1):** protects the right of a group

- **Art. 29(2):** guarantees the right of a citizen as an individual irrespective of the community to which he belongs.
- **Article 29 grants protection to:**
 - o Religious minorities
 - o Linguistic minorities
- **About Art. 30:** it grants the following rights to minorities (religious or linguistic):
 - o **Right to establish:** All minorities shall have the right to establish and administer educational institutions of their choice.
 - o **The compensation amount fixed by the State:** for the compulsory acquisition of any property of a minority educational institution shall not restrict or abrogate the right guaranteed to them (added by the 44th Amendment Act of 1978)
 - o **No discrimination:** In granting aid, the State shall not discriminate against any educational institution managed by a minority.
- **Term ‘minority’:** has not been defined anywhere in the Constitution.
- **Protects Only to Minorities:** Protection under Art. 30 is confined only to minorities
 - o Religious
 - o Linguistic
- **Does not extend to:** any section of citizens (as under Art. 29).
- **The right to impart education in its own language:** The right under Art. 30 also includes the right of a minority to impart education to its children in its own language

Your Answer: 3

INCORRECT || Marks: (+2,-0.66)|| On Screen: 00:42

Q.32

[Regarding the National Register of Citizens \(NRC\) in Assam, consider the following statements:](#)

- 1. The NRC in Assam aims to identify foreign nationals residing in Assam.
- 2. The NRC exercise is unique to Assam and is not planned to be extended to other states.
- 3. Nagaland is already implementing a similar database known as the Register of Indigenous Inhabitants.

[How many of the above statements are correct?](#)

- 1

 Only one
- 2

 Only two
- 3

 All three
- 4

 None

Solution

- **Statement 1 is correct** as the NRC in Assam indeed aims to identify foreign nationals.
 - **Statement 2 is incorrect** as the NRC exercise may be extended to other states in the future.
 - **Statement 3 is correct** as Nagaland is creating a similar database called the Register of Indigenous Inhabitants.
- Therefore, the correct answer is (b).** Statements 1 and 3 are correct.

More information:

National Register of Citizens (NRC)

- **What is NRC:** The National Register of Citizens (NRC) is a register of all Indian citizens whose creation is mandated by the 2003 amendment of the Citizenship Act, 1955.
- **Ministry of Home Affairs (MHA):** This NRC was prepared under a directive from the Ministry of Home Affairs (MHA).
- **Assam:** At present, only Assam has such a register and the exercise may be extended to other states as well.
- **Nagaland:** is already creating a similar database known as the Register of Indigenous Inhabitants.
- **The NRC in Assam:** is basically a list of Indian citizens living in the state. The citizens’ register sets out to identify foreign nationals in the state that borders Bangladesh.
- **The reason behind the move:** was to identify Indian citizens in Assam amid "unabated" migration from East Pakistan (now Bangladesh).

Your Answer: Not Answered

UNATTEMPT || Marks: (+2,-0.66)|| On Screen: 00:46

Q.33

[With reference to the acquisition of Indian citizenship, consider the following statements:](#)

- 1. A person can acquire Indian citizenship by birth if both parents are Indian citizens at the time of the child's birth.
- 2. Citizenship by naturalization requires the person to be well-versed in any language mentioned in the Eighth Schedule.

3. [The Citizenship Amendment Act, 2003, made citizenship by birth more stringent, requiring both parents to be Indian citizens or one to be an illegal migrant for those born after 2004.](#)
[How many of the above statements are correct?](#)

1 Only one

2 Only two

3 All three

4 None

Solution

- **Statement 1 is correct;** Indian citizenship by birth requires both parents to be Indian citizens.
- **Statement 2 is correct** as one of the conditions for citizenship by naturalization is to be well-versed in a language mentioned in the Eighth Schedule.
- **Statement 3 is incorrect**

For a child born in India **on or after 3 December 2004**, citizenship by birth is granted only if:

- **Both** parents are Indian citizens, **or**
- One parent is an Indian citizen **and** the other is **not an illegal migrant**.

The phrase “or one to be an illegal migrant” in the statement is **wrong** — it is actually the **opposite**.

More information:

• **By Naturalisation:**

- **Residing:** in the country concerned for a certain period of time.
 - **Do not be a citizen of any country:** where Indians do not get citizenship by naturalization.
 - **Relinquishing the citizenship:** of other countries and accepting the citizenship of India.
 - **Eighth Schedule:** Should be well versed in any one of the languages mentioned in the Eighth Schedule.
 - **Be of good character.**
 - **Special work:** a person who has done special work in the field of science, philosophy, art, literature, world peace, or human development,
□ He can get citizenship by naturalization without fulfilling the above conditions.
 - **The Citizenship Amendment Act, 2003:** It made Citizenship by birth more stringent keeping in view infiltration from Bangladesh, Now the law requires that for those
 - **Born after 2004:** in addition to the fact of their own birth, both parents should be Indian citizens or one parent must be Indian citizen and other should not be an illegal migrant.
- Therefore, the correct answer is (c).** Statements 1, 2 and 3 are correct.

Your Answer: 4

INCORRECT || Marks: (+2,-0.66)|| On Screen: 02:44

Q.34
[‘Right to Privacy’ is protected under which Article of the Constitution of India?](#)

1 Article 15

2 Article 19

3 Article 21

4 Article 29

Solution

Article 21 of the Indian Constitution deals with the protection of life and personal liberty. In the **KS Puttaswamy Case (2017)**, the Supreme Court held that **privacy is a natural right** that inheres in all natural persons, and that the right may be restricted only by state action that passes each of the three tests:

z Such state action must have a legislative mandate.

- INCORRECT** || Marks: (+2,-0.66)|| On Screen: 00:17

How many of the above statements are correct?

- UNATTEMPT || Marks: (+2,-0.66)|| On Screen: 00:25

CORRECT || Marks: (+2,-0.66)|| On Screen: 00:30

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Preamble -Description

- How many of the above pairs are correctly matched?

- ② Only two pairs

- **Statement 1 Incorrect.** Unity does not necessarily involve the promotion of regional languages.
- **Statement 2 Correct.** Sovereign means freedom from external control.
- **Statement 3 Incorrect.** Fraternity(brotherhood) promote unity among citizens, not the assimilation of all cultures.
- **Statement 4 Correct.** Justice includes equality before the law.

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:19

Which statement accurately characterizes the relationship between Fundamental Rights and Directive Principles of State Policy (DPSP) in the Indian Constitution?

- ② Fundamental Rights and DPSP are mutually exclusive.

- **Statement a is incorrect. Fundamental Rights are not subordinate to DPSP; both have their significance, but Fundamental Rights have precedence.**
- **Statement b is incorrect. Fundamental Rights and DPSP are not mutually exclusive; they coexist in the Indian Constitution.**
- **Statement c is incorrect. Fundamental Rights and DPSP are not equal in status; Fundamental Rights hold a superior position.**
- **Statement d is correct. Fundamental Rights take precedence over DPSP, meaning if there is a conflict, Fundamental Rights are given priority.**

CORRECT || Marks: (+2,-0.66)|| On Screen: 00:19

Regarding the imposition of reasonable restrictions on Fundamental Rights, which statement is accurate?

- ① Restrictions on Fundamental Rights must be reasonable and can be imposed only by the Parliament.

2 The judiciary alone has the authority to impose restrictions on Fundamental Rights.

3 Restrictions on Fundamental Rights must be prescribed by law and must be reasonable.

4 Fundamental Rights can never be restricted under any circumstances.

Solution

- Statement a is incorrect. Restrictions on Fundamental Rights can be imposed by both the Legislature and the Executive, provided they are reasonable.
- Statement b is incorrect. While the judiciary plays a role in safeguarding Fundamental Rights, restrictions can also be imposed by the Legislature and Executive.
- Statement c is correct. Restrictions on Fundamental Rights must be prescribed by law and must be reasonable, as outlined in the Constitution.
- Statement d is incorrect. Fundamental Rights can be restricted under specific circumstances, as long as such restrictions meet the constitutional criteria.

Your Answer: 3

CORRECT || Marks: (+2,-0.66)|| On Screen: 00:45

Q.40

[Regarding the freedom of speech and expression under Fundamental Rights, consider the following statements:](#)

[1. Freedom of speech and expression includes the freedom to criticize the government.](#)

[2. Freedom of speech and expression includes the freedom to express insensitive feelings through book.](#)

[3. Restrictions on freedom of speech and expression can only be imposed by the Central Government.](#)

[How many of the above statements are correct?](#)

1 Only one

2 Only two

3 Only three

4 None

Solution

- **Statement 1 is correct.** Freedom of speech and expression includes the freedom to criticize the government.
 - **Statement 2 is incorrect.** Freedom of speech and expression does not include promoting hate speech or insensitivity expression
 - **Statement 3 is incorrect.** Restrictions on freedom of speech and expression can be imposed by both the Central and State Governments.
- Therefore, the correct answer is (a).** Statements 2 and 3 are incorrect.
- More information:**
- **About Art.19(a):** Every citizen has the right to express his views, opinions, belief and convictions freely by word of mouth, writing, printing, picturing or in any other manner.
 - **Art. 19(a) includes:** The SC held that the freedom of speech and expression includes the following:
 - o Right to propagate one’s views as well as views of others.
 - o Freedom of the press.
 - o Freedom of commercial advertisements.
 - o Right against tapping of telephonic conversation.
 - o Right to telecast, government has no monopoly on electronic media.
 - o Right against bundh called by a political party or organization.
 - o Right to know about government activities.
 - o Freedom of silence.
 - o Right against imposition of pre-censorship on a newspaper.
 - o Right to demonstration or picketing but not right to strike.
 - **Grounds for reasonable restrictions: 8 grounds**
 - o Sovereignty and integrity of India
 - o Security of the state
 - o Friendly relations with foreign states
 - o Public order
 - o Decency or morality
 - o Contempt of court
 - o Defamation

o Incitement to an offence

Your Answer: Not Answered

MARK FOR REVIEW || Marks: (+2,-0.66)|| On Screen: 01:32

Q.41

A person has been arrested for an alleged crime, and their family is concerned about their well-being. Which writ can the family file to ensure that the person is not subjected to any form of torture or inhuman treatment while in custody?

1 Mandamus

2 Habeas Corpus

3 Certiorari

4 Quo Warranto

Solution

Statement (b) is correct. Habeas Corpus is the writ used to ensure that a person is not subjected to torture or inhuman treatment while in custody.

More information
HABEAS CORPUS

- **Meaning:** Habeas corpus means “to have the body of”.
- **Implication:** It is an order issued by the court to a person who has detained another person to produce the body of the latter before it.
 - o The court then examines the cause and legality of detention.
 - o It would set the detained person free, if the detention is found to be illegal.
- **Importance:** Habeas corpus writ is a bulwark of individual liberty against arbitrary detention.
- **Can be issued :** against both public authorities as well as private individuals.
- **Exceptions:** The writ of habeas corpus cannot be issued in following cases where
 - o Detention is lawful,
 - o The proceeding is for contempt of a legislature or a court,
 - o Detention is by a competent court,
 - o Detention is outside the jurisdiction of the court.

Your Answer: 2

CORRECT || Marks: (+2,-0.66)|| On Screen: 00:58

Q.42

The distribution of powers between the Centre and the States in the Indian Constitution is based on the Act provided in the

1 Morley-Minto Reforms, 1909

2 Montagu-Chelmsford Act, 1919

3 Government of India Act, 1935

4 Indian Independence Act, 1947

Solution

Distribution of power between the Centre and the States in the Indian Constitution is based on the Government of India Act. 1935.

The Government of India (GoI) Act of 1935 provided for a three-fold enumeration, viz., federal, provincial and concurrent.

The present Constitution follows the scheme of this act for the distribution of powers between the Centre and States but

with one difference, that is, under 1935 act, the residuary powers were given neither to the federal legislature nor to the provincial legislature but to the governor-general of India.

Your Answer: 3

CORRECT || Marks: (+2,-0.66)|| On Screen: 00:45

Q.43

Who was the Provisional President of the Constituent Assembly before Dr. Rajendra Prasad took over?

-

- ☐ 1 C. Rajagopalachar
- ☐ 2 Dr. B.R. Ambedkar
- ☐ 3 T.T. Krishnamachari
- ☒ 4 Dr. Sachchidananda Sinha

Solution

The Provisional President of the Constituent Assembly before Dr. Rajendra Prasad took over was **(d) Dr. Sachchidananda Sinha**. He was elected as the temporary President during the first meeting on December 9, 1946, following the French practice of appointing the oldest member. Dr. Rajendra Prasad was elected as the permanent President on December 11, 1946.

Your Answer: 4

CORRECT || Marks: (+2,-0.66)|| On Screen: 00:16

Q.44

Consider the following with reference to the features of Democracy.

-

1. Major decisions are taken by elected leaders

2. Free and fair electoral competition

3. One person, one vote, one value

4. Parliamentary sovereignty

How many of the above given statements is/are incorrect?

- ☒ 1 Only one
- ☐ 2 Only two
- ☐ 3 Only three
- ☐ 4 All four

Solution

Democracy is a form of government in which the rulers are elected by the people. Features of the Democracy are

- **Statement 1 is correct:** In a democracy the final decision making power must rest with those elected by the people.
- **Statement 2 is correct:** A democracy must be based on a free and fair election where those currently in power have a fair chance of losing.
- **Statement 3 is correct:** In a democracy, this principle is known as "Universal Adult Suffrage" and "One Person, One Vote, One Value." It ensures that every adult citizen has an equal right to vote, and no vote carries more weight than another.
- **Statement 4 is incorrect:** Parliamentary sovereignty is not a universal feature of democracy. In some countries like the UK, Parliament is supreme, and courts cannot overrule its laws. In others like the USA, judicial sovereignty dominates, where the Supreme Court can strike down unconstitutional laws. India follows a balanced model, where both Parliament and the judiciary have significant powers.

Your Answer: 4

INCORRECT || Marks: (+2,-0.66)|| On Screen: 00:39

Q.45

Article 395 of the Indian Constitution declared certain laws null and void as the Constitution came into force. Which of the following were repealed under this provision?

1. Government of India Act, 1935

2. Indian Independence Act, 1947

3. Abolition of Privy Council Jurisdiction Act, 1949

4. Government of India Act, 1919

- 11 and 2

21 and 3

31, 2, and 3

41, 2, and 4

Solution

Article 395 of the Indian Constitution rendered certain colonial-era laws invalid to eliminate the old legal framework upon the enforcement of the new Constitution:

1. **Government of India Act, 1935:** This law was the basis for governance during British rule but was replaced entirely by the provisions of the Indian Constitution.

2. **Indian Independence Act, 1947:** This law, which granted India independence and established the dominion structure, became irrelevant once the new Constitution came into effect.

Other Acts:

• The **Abolition of Privy Council Jurisdiction Act, 1949**, continued to exist, as it was not affected by Article 395. It served to end appeals to the Privy Council and affirm the Supreme Court’s authority.

• The **Government of India Act, 1919**, was already replaced by the Government of India Act, 1935, and therefore wasn’t directly repealed by Article 395.

Thus, only the 1935 and 1947 Acts were annulled under Article 395.

Your Answer: 4

INCORRECT || Marks: (+2,-0.66)|| On Screen: 01:56

Q.46

Which of the following factors contributed to the widespread acceptance of the Indian Constitution?

1. The Constitution was created by representatives reflecting diverse sections of Indian society.

2. It was endorsed by prominent leaders with strong public credibility.

3. The Constituent Assembly was largely influenced by a single political party, ensuring coherence in its vision.

4. National leaders advocated for putting the Constitution to a referendum by the people.

Select the correct answer using the code given below:

- 11, 2, and 3 only

21 and 2 only

31, 3, and 4 only

41, 2, 3, and 4

Solution

• **Statement 1 is correct:** The Constituent Assembly was composed of representatives from various communities, including Hindus, Muslims, Sikhs, Parsis, Anglo-Indians, Indian Christians, Scheduled Castes, Scheduled Tribes, and women. This diverse representation made the Constitution broadly acceptable, even though the Assembly was not elected by universal adult suffrage.

- **Statement 2 is correct:** The Constitution received widespread acceptance due to the endorsement and support of respected leaders who were trusted by the public. Their credibility and ability to build consensus ensured its legitimacy.
- **Statement 3 is incorrect:** This statement is correct but it is not the reason for widespread acceptance of the Indian Constitution. The Constituent Assembly was predominantly influenced by the Congress Party, which held 82% of the seats post-Partition. This dominance allowed for a unified vision in framing the Constitution, though it also drew criticism for a lack of political plurality. Despite this, the Assembly’s inclusive representation balanced the critique.
- **Statement 4 is incorrect:** The Constitution was not put to a public referendum. Its legitimacy stemmed from the trust placed in the Assembly and its respected members rather than a direct vote by the people.

Your Answer: 2

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:18

Q.47

India is described as a Republic because:

[1. The political sovereignty of India is vested in the people of the country.](#)

[2. India has accepted the British Crown as the head of the Commonwealth.](#)

[3. The head of the state is always an elected individual.](#)

[4. Indian Constitution provides for only a single citizenship.](#)

Select the correct answer using the codes given below:

- 1 1 and 4 only
- 2 1 and 3 only
- 3 2 and 3 only
- 4 1, 3 and 4 only

Solution

- ❑ **Statement 1 is correct:** India is described as a republic because the ultimate authority rests with the people, who elect their representatives. Sovereignty belongs to the people, and the government operates on their consent, making India a democratic republic.
- ❑ **Statement 2 is incorrect:** While India is a member of the Commonwealth, the British Crown is not its head. After independence, India became a republic and is no longer under the British monarchy. India has a President as the head of state, not the British Crown.
- ❑ **Statement 3 is correct:** In a republic, the head of state is elected, either directly or indirectly. In India, the President is elected through an electoral process, which makes the country a republic, as opposed to monarchies where the head of state is hereditary.
- ❑ **Statement 4 is incorrect:** Indian Constitution provides for a single citizenship (Indian citizenship for all citizens, regardless of the state they belong to), this is not a characteristic that defines India as a republic. The concept of a republic is more closely related to the elected head of state and sovereignty vested in the people, rather than the issue of citizenship

Your Answer: 4

INCORRECT || Marks: (+2,-0.66)|| On Screen: 00:44

Q.48

The feature of Separation of Powers in the Constitution of India aims to:

[1. Prevent the misuse of power through checks and balances among the three organs of government.](#)

[2. Promote accountability by ensuring that each branch operates within its constitutional limits.](#)

[3. Ensure independence of the Judiciary to uphold the rule of law and protect fundamental rights.](#)

[4. Help the judiciary provide complete justice to weaker sections of society.](#)

Which of the statement/given above is/are correct?

- 1 1, 2, and 3 only
- 2 1, 3, and 4 only

3 2, 3, and 4 only

4 1, 2, and 4 only

Solution

- **Statement 1 is correct:** The core objective of Separation of Powers is to prevent misuse of power by creating a system of checks and balances. Each branch of government—Legislature, Executive, and Judiciary—keeps the others in check.
- **Statement 2 is correct:** Separation of Powers helps promote accountability. Each branch of government is given specific powers and responsibilities within the Constitution. By ensuring each branch operates within its limits, it reduces the risk of one branch overstepping its boundaries or becoming too powerful.
- **Statement 3 is correct:** An essential aspect of the doctrine is ensuring the independence of the Judiciary. The judiciary must be free from undue influence by the executive or legislative branches. This independence allows the judiciary to interpret the law impartially, protect fundamental rights, and uphold the rule of law without interference from the other branches.
- **Statement 4 is incorrect:** The judiciary's role in providing "complete justice" under Article 142 is not a direct result of the Separation of Powers. In fact, such actions sometimes lead to judicial overreach, contradicting the principle

Your Answer: 1

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:28

Q.49

Consider the following statements:
1. Union Territories are created by a law enacted by the Parliament.
2. The President can establish a Union Territory by an executive order without the need for legislative approval.
3. The formation of a Union Territory requires the consent of the concerned state government.
Choose the correct option from below:

- 1 One of the statements is correct
- 2 Two of the statements are correct
- 3 Three of the statements are correct
- 4 None of the statements are correct

Solution

- **Statement 1 is correct.** The creation or alteration of Union Territories is done through legislation passed by the Parliament of India. Parliament has the authority to establish, abolish, or alter Union Territories by enacting laws.
- **Statement 2 is incorrect.** The establishment of Union Territories usually requires legislative action by the Parliament. The President, in the normal course, doesn't have the unilateral power to create a Union Territory through an executive order without legislative approval.
- **Statement 3 is incorrect.** The formation of a Union Territory does not always necessitate the consent of the concerned state government.
○ The creation or alteration of Union Territories is primarily within the purview of the Parliament, and while state governments might be consulted or their interests considered, their explicit consent isn't mandatory.

Your Answer: 1

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:06

Q.50

Consider the following statements with reference to Constitutional amendment bill:
1. An amendment to the Constitution can be initiated in either parliament or state legislatures.
2. It can be introduced either by a Minister or by a private member.
3. The President cannot send back an amendment bill for reconsideration by the legislature.
Which of the above given statement is/are correct:

- 1 1 and 3 only

④ 1, 2 and 3

- **Statement 1 is incorrect:** Article 368 provides that Parliament may in exercise of its constituent power amend by way of addition, variation or repeal any provision of this Constitution in accordance with the procedure laid down in this article. All amendments to the Constitution are initiated only in the Parliament and not in the State legislatures.
- **Statement 2 is correct:** The Constitutional amendment bill can be introduced either by a minister or by a private member and does not require prior permission of the President.
- **Statement 3 is correct:** The President must give his assent to the bill. He can neither withhold his assent to the bill nor return the bill for reconsideration by the Parliament.

CORRECT || Marks: (+2,-0.66)|| On Screen: 01:38